Litigation costs of $11,498.40 are reasonable and are approved. Settlement administration costs of $7,000 are reasonable and are approved. The requested representative payment of $20,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that he assisted attorneys throughout the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Plaintiffs' counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. No appearance is required at the hearing on August 12, 2026.

7. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
PRELIMINARY APPROVAL (SET BY THE COURTROOM)
FILED BY:
TENTATIVE RULING:*
Summary

The Court **continues** the hearing on this Motion for Preliminary Approval to September 16, 2026 at 9:00 a.m. to allow for hearing on the Demurrer to the cross-complaint currently on calendar for August 26, 2026. No appearance is required at the August 12, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-02424
CASE NAME: DANIEL HOCOG VS. SERVICE MANAGEMENT SYSTEMS, INC.
FINAL APPROVAL OF THE SETTLEMENT
FILED BY:
TENTATIVE RULING:*
Summary

Plaintiffs Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr. ("Plaintiffs") file this Motion for Final Approval of Class Action and PAGA Settlement against Defendant Service Management Systems, Inc ("Defendant"). The motion is **granted** as set forth herein. No appearance is required in person on August 12, 2026.

Background

Defendant is a business that provides housekeeping, maintenance, and consultant programs to business customers throughout the County. Plaintiffs were nonexempt hourly employees who have claimed wage and hour violations and PAGA remedies.

The Court finds that Plaintiffs have presented a non-reversionary Gross Settlement Amount of **$265,000.00**, which resolves the class and PAGA claims against Defendant. From the Gross Settlement Amount, the following allocations are requested: Class Counsel's attorneys' fees in the amount of **$88,333.33** (one-third of the Gross Settlement Amount); reimbursement of litigation costs in the amount of **$20,000.00**; Class Representative Service Payments of **$5,000.00** to each named Plaintiff (Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr.), for a total of $10,000.00; and settlement administration expenses of **$8,800.00** to Apex Class Action Administration.

The Settlement also allocates $40,000.00 from the Gross Settlement Amount as PAGA civil penalties, of which $30,000.00 (seventy-five percent) shall be paid to the California Labor and Workforce Development Agency, and $10,000.00 (twenty-five percent) shall be distributed to Aggrieved Employees based on the number of pay periods worked during the PAGA Period.

After the foregoing deductions, the Net Settlement Amount of approximately $97,866.67 shall be distributed to the 320 Participating Class Members on a pro rata basis according to the number of workweeks each class member worked during the Class Period, resulting in an estimated average Individual Class Payment of $305.83 and a highest estimated payment of $1,749.29.

The Settlement Administrator has calculated a total of 13,595 workweeks in the Class Period. Aggrieved Employees shall receive an estimated average Individual PAGA Payment of $72.46, with the highest estimated payment being $235.58.

No Class Members have objected to the Settlement, requested exclusion, or submitted workweek disputes. The absence of objections and opt-outs supports the fairness and adequacy of the Settlement.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy.

(*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

<u>Attorney fees</u>

Plaintiff seeks one-third of the total settlement amount as fees, $83,333.33, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

Counsel's declaration indicates that while this case was handled on a contingency basis, normal rates charged by the firm are between $600- $1500 per hour. The total amount billed on an hourly basis from all attorneys who worked on this case is $125,975. This results in an imputed negative multiplier of .70, which means that Counsel's proposed fee award is discounted by approximately 23% of the amount billed. The Court finds that the requested attorneys' fees are reasonable in light of the contingency nature of the representation, the time and effort expended by Class Counsel, the skill required, the results obtained, and the substantial value delivered to the class members, aggrieved employees, and the State of California.

Litigation costs of $20,000 are reasonable and are approved. Settlement administration costs of $8,800 are reasonable and are approved. The requested representative payment of $5,000 for each named plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff Hocog attests that he assisted attorneys throughout the case, providing attorneys with documents and information concerning the case, spending approximately 40-45 hours, and also describing policies, practices, and procedures of Defendant.

<u>Ruling</u>

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **<u>granted</u>**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. No appearance is required at the hearing on August 12, 2026.

9. 9:00 AM CASE NUMBER: C24-01704
CASE NAME: RAMY EDEN VS. AU ENERGY, LLC
ENTRY OF CONSENT JUDGMENT
FILED BY: EDEN, RAMY KAUFLER
TENTATIVE RULING:*

Summary

On March 6, 2026, Plaintiff Ramy Eden ("Plaintiff") filed an unopposed Motion for Entry of Consent Judgment seeking approval of the parties' Stipulated Consent Judgment against Defendant AU Energy, LLC ("Defendant"). The motion is **granted**. No appearance is required at the hearing on August 12, 2026.

Background

This action was brought pursuant to California Health and Safety Code section 25249.5 et seq. ("Proposition 65") alleging that Defendant violated Proposition 65 by exposing individuals to unleaded gasoline vapors at its service stations located at 3621 San Pablo Dam Road, El Sobrante, California and 2876 El Portal Drive, San Pablo, California without providing clear and reasonable warnings as required by law. Following arm's length negotiations between parties separately represented by counsel, the parties reached a settlement that resolves all claims in this action. The settlement requires Defendant to provide compliant warnings at the subject stations, pay a civil penalty as a deterrent to future violations, and pay Plaintiff's reasonable attorneys' fees and costs.

The motion was duly served upon the California Attorney General and Defendant's counsel, with the hearing noticed for August 12, 2026, which is more than forty-five days after service upon the Attorney General as required by California Code of Regulations title 11, section 3008. As of the filing of the Declaration of Compliance, neither Defendant, the Attorney General, nor any other party has filed opposition to the motion or objection to the stipulated settlement. Plaintiff has further advised the Court, pursuant to section 3008(a)(2) of Title 11 of the California Code of Regulations, that the Attorney General's failure to comment shall not be construed as endorsement of or concurrence in the settlement.

Analysis

The Court finds that the settlement complies with all statutory requirements set forth in Health and Safety Code section 25249.7, subdivision (f)(4). The warning provisions satisfy Proposition 65's mandate for "clear and reasonable" warnings prior to exposure to known carcinogens. The civil penalty amount is reasonable based upon the criteria set forth in Health and Safety Code section 25249.7(b)(2).

The award of $15,000 in attorneys' fees and costs is reasonable under California law and authorized pursuant to Health and Safety Code sections 25249.7(b) and 25249.12(c)(1) and Code of Civil Procedure section 1021.5.

Voluntary conciliation and settlement are the preferred means of dispute resolution, reducing the